HEADNOTE

> *"A defendant company in China cannot, as a starting point, be served a Statement of claim via a company within the same group in a Contracting Member State. Such a group company cannot automatically be seen as a statutory seat, central administration or principal place of business of a defendant company in China, nor a place where such defendant has a permanent or temporary place of business. Attempts to serve in China by any method provided for by the Hague Convention pursuant to R.274.1(a)(ii) RoP shall normally be made before service permitted by the law of the state where service is to be effected (R.274.1(b)) or by alternative methods or at an alternative place (R.275 RoP) is permitted."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Infringement action

PATENT
EP 2 642 632

Wireless power receiver and method of manufacturing the same

KEYWORDS
Service | Regulation (EU) 2020/1784 | the Hague Convention | Service outside the Contracting Member St...

Rule 274 Service outside the Contracting Member States

SUMMARY
The Court of Appeal Luxembourg ruled on an infringement action. The patent at issue relates to a wireless power receiver and method of manufacturing the same. According to the headnotes of the decision, a Chinese defendant company cannot normally be served via a related company in a UPC Contracting Member State. Such a group company does not automatically qualify as the defendant's statutory seat, central administration, or principal place of business. Furthermore, it cannot be treated as a place where the defendant has an established business presence. This means that service attempts in China must normally follow the Hague Convention procedures first. In particular, attempts by methods under Rule 274.1(a)(ii) should precede service under the law of the destination state. Additionally, alternative methods or alternative places for service under the Rules of Procedure may only be used after Hague Convention procedures have been attempted.